

The Sands Governing Theorem

Pre-Governing Conflict as a Necessary Condition for Long-Term State Legitimacy

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Abstract

We propose the *Sands Governing Theorem*: a governing class that has not been forged by pre-governing conflict — whether directly experienced or inherited within living institutional memory — lacks the legitimacy, resilience, and experiential wisdom necessary for stable long-term governance, and the state it governs will tend toward political instability in proportion to the conflict deficiency and inversely to the strength of inherited institutional memory. The paper develops the theorem formally, identifies the two variables (Conflict Deficiency Score and Institutional Memory Strength) that determine outcomes, examines historical cases across five centuries, and distinguishes the theorem from related propositions in Ibn Khaldun, Machiavelli, Hegel, and Taleb. The theorem is proposed as a testable framework for assessing the long-term stability of states, particularly post-conflict states and states undergoing generational leadership transitions.

Keywords: political legitimacy; state formation; institutional memory; skin in the game; asabiyyah; post-conflict states; democratic theory.

1 Introduction

The question of what makes a governing class legitimate has occupied political philosophy since Plato. Contemporary answers typically invoke consent of the governed (Locke), democratic mandate (Rousseau, Mill), rational-legal authority (Weber), or performance outcomes (contemporary public administration).

This paper proposes an additional and largely overlooked determinant: whether the governing class *as a class* was tested by conflict before it assumed power. We argue that pre-governing conflict — war, revolution, sustained ideological struggle, or existential resistance — functions as a necessary condition for the long-term legitimacy and stability of the resulting state.

The claim is testable. It predicts that states whose governing classes acquired power without prior conflict will trend toward political dysfunction over time, ranging from

mild institutional weakness to full failed-state conditions, in proportion to the degree of conflict deficiency and inversely to the strength of inherited institutional memory.

Section 2 develops the theorem formally. Section 3 identifies the two key variables and proposes a classification system. Section 4 examines historical cases. Section 5 addresses challenging cases and proposes refinements. Section 6 situates the theorem within existing political philosophy. Section 7 discusses implications and limitations. Section 8 concludes.

2 The Theorem

2.1 Formal Statement

Definition 1 (Governing Class). *The governing class G of a state S is the set of individuals who exercise significant executive, legislative, or judicial power over S during a defined period. This includes elected representatives, senior civil servants, and other holders of formal state authority.*

Definition 2 (Pre-Governing Conflict). *Pre-governing conflict C refers to serious struggle — military, revolutionary, ideological, or existential — in which members of G personally participated before assuming governing authority over S . The conflict must be one in which failure carried real personal cost (physical danger, financial ruin, imprisonment, or exile) and in which participation was voluntary rather than merely inherited.*

Theorem 1 (Sands Governing Theorem). *Let S be a state, G its governing class, and C the condition that G underwent pre-governing conflict. Then:*

$$\neg C \implies S \text{ tends toward political instability akin to state failure} \quad (1)$$

The strength of this tendency scales with the degree of conflict deficiency and inversely with the strength of inherited institutional memory.

2.2 Interpretation

The theorem does not claim that absence of pre-governing conflict causes immediate state failure. It claims a *tendency* that manifests over time. States can appear stable for one or two generations after formation without pre-governing conflict, because inherited institutions provide temporary cohesion. The tendency becomes visible when those inherited institutions face a genuine stress test.

The contrapositive is equally instructive: *if a state demonstrates long-term stability, then either its governing class underwent pre-governing conflict or it possesses strong inherited institutional memory from a prior class that did.*

3 The Two Variables

The theorem’s predictive power rests on two measurable variables.

3.1 Conflict Deficiency Score (CDS)

The Conflict Deficiency Score measures the extent to which the current governing class lacks direct conflict experience.

CDS	Description
0	Governing class directly fought
1	Governing class shaped by institutional memory of recent conflict (within one generation)
2	Governing class shaped by institutional memory of older conflict (two or more generations)
3	No conflict participation and no meaningful institutional memory

3.2 Institutional Memory Strength (IMS)

Institutional Memory Strength measures whether the state’s institutions carry embedded knowledge of prior conflict, whether or not the current governing class personally experienced it.

IMS	Description
Strong	Institutions older than 100 years with documented conflict origin
Moderate	Institutions 50–100 years, conflict- adjacent founding
Weak	Institutions under 50 years, or founded without conflict
None	Institutions imposed externally (colonial handover, occupation)

3.3 Predicted Outcomes

CDS	IMS	Predicted Trajectory
0	Strong	Highly stable long-term
1	Strong	Stable
1	Moderate	Fragile but viable
2	Moderate	Recurring instability
2	Weak	High failure risk
3	Weak/None	Failed state trajectory

4 Historical Cases

4.1 Supporting Cases: Presence of Conflict

United States (1776–present): The founding generation underwent revolutionary conflict. CDS = 0. Institutional memory subsequently maintained by Civil War

experience and two World Wars. The Republic has persisted for approximately 250 years despite significant internal crises.

Roman Republic (509–27 BCE): Founding senators overthrew the Tarquin monarchy. CDS = 0 initially. The Republic sustained itself for approximately five centuries. Its collapse coincided with the governing class ceasing to personally participate in military affairs (Marian reforms, professional armies under generals rather than citizen-soldier senators).

Singapore (1965–present): Lee Kuan Yew and the People’s Action Party navigated Japanese occupation, British colonial transition, communist insurgency, and forced separation from Malaysia. CDS = 0. The state has transitioned from third-world to first-world in one generation with consistently stable governance.

Israel (1948–present): Founding leadership emerged from Holocaust survival, partisan movements, and the 1948 War of Independence. CDS = 0. Despite continuous external pressure, sustained functional democratic institutions and significant economic development.

4.2 Supporting Cases: Absence of Conflict

Weimar Germany (1919–1933): Governing class largely consisted of pre-war politicians who had not fought in World War I. CDS = 2 (institutional memory existed but the specific governing class was seen as disconnected from the war sacrifice). IMS = Weak (Weimar institutions were new and not conflict-derived). Outcome: collapse within 14 years to a movement led by a former soldier.

Post-Colonial States (Various, 1960s– present): States receiving independence through negotiated handover without significant conflict often show high political dysfunction. Contrast with states whose independence required sustained struggle (Vietnam, Algeria, Rwanda post-RPF), which demonstrate comparatively stronger state capacity.

Iraq (post-2003): Governing class installed following external invasion, composed largely of returning exiles who had not participated in resistance to the previous regime from within. CDS = 3. IMS = None (institutions imposed externally). Outcome: sustained sectarian conflict and near-failed-state conditions.

4.3 Applying the Framework: Ukraine (2014–present)

To demonstrate the theorem as an analytical tool rather than retrospective explanation, consider the case of Ukraine since the 2014 Revolution of Dignity.

The current Ukrainian governing class has substantially undergone pre-governing conflict. President Zelensky and much of his administration took power in 2019, before the full-scale Russian invasion of 2022, but their subsequent performance under

existential conflict has forged them into a governing class with $CDS \rightarrow 0$ during their tenure. Prior figures shaped by the Maidan protests and eastern Ukraine conflict populate significant positions.

IMS is complicated. Ukrainian state institutions post-1991 were largely inherited from Soviet structures (IMS = Weak to None for the immediate post-independence period), but the reforms since 2014 have increasingly built new institutions with explicit conflict-derived legitimacy (IMS shifting to Moderate).

The theorem predicts that Ukraine's governing class, if it survives the current conflict, will possess strong legitimacy foundations comparable to Israel's founding generation. The theorem also predicts that the durability of Ukrainian democratic institutions will depend significantly on whether the next generation of leaders maintains meaningful connection to the conflict experience, or whether normalisation produces a governing class that inherits the state without inheriting the memory of what created it.

This case illustrates the framework's forward-looking utility: it generates specific predictions about which current states are building durable governance foundations and which are accumulating future legitimacy debts.

5 Challenging Cases and Refinement

5.1 New Zealand and the Commonwealth Democracies

New Zealand, Canada, and Australia are stable democracies whose governing classes did not undergo founding conflicts of their own. The theorem must account for this.

The proposed resolution: these states inherited institutional memory from the British parliamentary tradition, which was itself forged in conflict (English Civil War 1642–1651; Glorious Revolution 1688). Their CDS is 2 or 3, but their IMS is Strong because they operate institutions with documented conflict origins.

Additionally, participation in external conflicts (both World Wars, in which Commonwealth nations sacrificed disproportionately) provided a form of vicarious institutional memory that maintained the inherited legitimacy.

This suggests the theorem requires the following refinement:

Proposition 1 (Inherited Legitimacy). *Institutional memory of conflict can partially substitute for direct participation, provided that the institutions remain functionally connected to the memory. This connection degrades over time and generational distance.*

5.2 The Time Horizon Question

The theorem predicts a *tendency*, not an immediate outcome. New Zealand, at 186 years since its foundational treaty, is young compared with the Roman Republic's

500 years. Institutional memory of Commonwealth conflict is becoming increasingly distant. The theorem predicts that Commonwealth democracies will face increasing legitimacy challenges as this memory attenuates further — a prediction that current voter disaffection trends across these states appear to support.

5.3 The Reverse Causation Challenge

A methodological objection deserves direct attention: the theorem might have the causation backwards. Perhaps successful states *cause* their governing classes to undergo conflict, rather than conflict-forged classes producing successful states. Wealthy, capable states can afford wars and revolutions that fragile states cannot survive.

Three considerations weigh against this reversal.

First, the theorem specifies *pre-governing* conflict. The relevant conflict occurs *before* the governing class holds power over the state in question. This temporal ordering is inconsistent with the reverse- causation reading, which would require the state's success to produce conflict experience in people who did not yet govern it.

Second, many of the founding conflicts examined occurred against the interests of the prior state (revolutions against existing regimes, resistance against occupations, independence struggles against colonial powers). It would be strange to characterise these as caused by state success, since they were precisely attempts to reject the existing state.

Third, the predicted failure mode is instructive. Reverse-causation cannot easily explain why states without pre-governing conflict tend to fail; it can only explain (in some cases) why states with pre-governing conflict tend to succeed. The theorem's predictive power on both sides of the condition strengthens the causal interpretation proposed.

None of this is dispositive. Genuine empirical validation would require careful identification strategies to isolate the causal effect. The theorem is offered as a testable hypothesis, not a proven claim.

6 Relation to Existing Theory

6.1 Ibn Khaldun

Ibn Khaldun's *Asabiyyah* concept (Muqaddimah, 1377) argues that dynasties rise through shared hardship-forged solidarity and fall when they become comfortable. The Sands Theorem generalises this observation from Arab tribal dynasties to modern states and provides two measurable variables (CDS and IMS) that Ibn Khaldun's framework lacks.

6.2 Machiavelli

Machiavelli argued that individual rulers require conflict experience to be effective (*The Prince*, 1532). The Sands Theorem extends this from the individual ruler to the entire governing class as a collective, making it applicable to democratic and republican states.

6.3 Hegel

Hegel’s observation that “the owl of Minerva spreads its wings only with the falling of dusk” (*Philosophy of Right*, 1820) suggests wisdom emerges after struggle. The Sands Theorem provides a specific, falsifiable formulation of this general philosophical claim.

6.4 Taleb

Taleb’s “skin in the game” principle (*Skin in the Game*, 2018) argues that decision-makers who bear no personal cost from their decisions make systematically worse choices. The Sands Theorem applies this principle to governing classes across historical time, extending Taleb’s individual-level analysis to state-level outcomes.

6.5 Distinctive Contribution

Four features distinguish the Sands Theorem from these antecedents:

1. It has a formal if-then structure enabling falsification testing.
2. It specifies pre-governing conflict rather than conflict at any time, identifying a specific causal direction.
3. It predicts a specific outcome (failed-state trajectory) rather than generic decline.
4. It applies to the governing class as a collective, making it a systemic claim rather than a biographical one about individual leaders.

7 Implications and Limitations

7.1 Implications for Contemporary Governance

If the theorem is correct, several implications follow:

Governance quality in mature democracies tends to decline as institutional memory of the founding conflicts fades. This predicts increasing legitimacy crises in states whose founding generations have passed approximately three generations into the past — which describes most Western democracies in the current period.

Post-conflict state building efforts should attend to the question of whether the proposed new governing class has been forged by the conflict itself or is being externally installed. The theorem predicts externally installed classes will face persistent legitimacy challenges regardless of their technical competence.

Democratic reform proposals should consider mechanisms for maintaining or substituting for the conflict-forged legitimacy that founding classes possess. Compulsory military or civilian service, mandatory pre-office experience requirements, or economic-realignment mechanisms (see Sands, 2026: The Median Mandate) represent possible approaches.

7.2 Limitations

The theorem faces several important limitations:

Operationalisation challenges: Measuring both CDS and IMS requires judgement calls about what qualifies as “conflict” and “institutional memory.” Different researchers may score the same case differently.

Confounding variables: Many factors beyond pre-governing conflict influence state stability, including economic conditions, geographic factors, external threats, and cultural homogeneity. The theorem proposes conflict as a necessary but not sufficient condition; other factors matter too.

7.3 An Empirical Research Programme

Formal empirical testing of the theorem would require the following components.

Case selection: A systematic sample of states formed within a defined period (for instance, all states established or fundamentally restructured between 1945 and 2000), rather than the selective cases examined here. Approximately 100 candidate cases exist.

Independent variable coding: Each state’s founding governing class coded for Conflict Deficiency Score (0–3) and its inherited institutional memory coded for IMS (Strong, Moderate, Weak, None). Coding should be done by multiple independent reviewers with inter-rater reliability statistics reported.

Dependent variable: State stability measured through multiple indicators over 25–50 years post- founding: constitutional continuity, incidence of civil conflict, presence on failed- state indices (Fund for Peace, World Bank Governance Indicators), or synthetic measures.

Statistical tests: Ordinal regression of stability outcomes on CDS and IMS with controls for economic conditions, geographic factors, external threat environment, and cultural homogeneity. Interaction terms between CDS and IMS would test the proposed inverse relationship between the two.

Falsification conditions: The theorem is disconfirmed if CDS and IMS together fail to predict stability outcomes above chance after controlling for established variables, or if the direction of prediction is consistently reversed.

Such a research programme is beyond the scope of this theoretical paper but is tractable for future work. Interested researchers are invited to contact the author.

Sample limitations: The number of clear historical cases is limited, and selection bias in the cases examined here (chosen to illustrate the theorem) should be acknowledged. A more rigorous empirical test would require systematic coding of a comprehensive sample of states across a defined period.

7.4 Failure Modes of the Theorem

Honest theory specifies its own disconfirmation conditions. The Sands Governing Theorem would be substantially disconfirmed under the following conditions:

Long-term stability with maximum conflict deficiency: If states with CDS = 3 and IMS = None demonstrate sustained stable governance for periods exceeding 100 years, the theorem's core claim is falsified. Such cases would show that stable governance is possible without any conflict-derived legitimacy foundation.

Failure despite maximum conflict foundation: If states with CDS = 0 and IMS = Strong consistently fail within one generation of founding, the theorem's proposed protective effect of conflict experience is disconfirmed.

Independence of variables: If empirical testing shows that CDS and IMS operate independently rather than jointly (as the theorem proposes their inverse relationship), the specific prediction structure would require revision even if the general direction of the argument survived.

Cultural specificity: If the theorem holds in Western contexts but fails in Asian, African, or Islamic governance traditions, the theorem is not universal and requires reformulation as a culturally-specific claim.

These falsification conditions are stated explicitly so that the theorem can be tested and, if warranted, discarded or revised. A theory that cannot be wrong is a theory that cannot be right.

Cultural specificity: The theorem may operate differently in different cultural contexts. Asian governance traditions, for instance, place different weight on conflict-derived legitimacy than Western traditions do.

8 Conclusion

The Sands Governing Theorem proposes that pre-governing conflict experience — direct or institutionally inherited within living memory — functions as a necessary condition for

stable long-term state governance. Absence of this condition predicts a tendency toward political dysfunction proportional to the degree of conflict deficiency and inversely to the strength of inherited institutional memory.

The theorem is testable in principle and generates specific predictions about which states should face legitimacy challenges over coming generations. It generalises observations from Ibn Khaldun, Machiavelli, Hegel, and Taleb into a formal framework applicable to contemporary governance analysis.

We submit this framework for critical engagement, empirical testing, and refinement by political theorists, historians, and practitioners of post-conflict state building.

References

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Note on Method: This paper offers a theoretical framework rather than an empirical study. Historical cases are used to illustrate the theorem's application, not to establish it definitively. Empirical validation would require systematic coding of a larger case set and remains work for future research.

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